

24STCV12125 24STCV12125

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Case Number: 24STCV12125 Hearing Date: September 11, 2026 Dept: 414

24STCV12125

Troncoso v. FCA US LLC

Friday,

September 11, 2026

FINAL [MODIFIED]

ORDER PLAINTIFF'S MOTION TO COMPEL COMPEL RESPONSES

TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR SANCTIONS (4616)

I.

BACKGROUND

The

complaint alleges Defendant breached an express warranty regarding a 2020 Jeep Grand Cherokee purchased by Plaintiffs. Plaintiffs move for an order compelling Defendant to serve responses to requests for production of documents, set one, served on Defendant on July 2, 2024.

As of

September 9, 2026, Plaintiffs did not file a reply brief.

II.

DISCUSSION

"If a

party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party to whom the

demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party making the demand may move for an order compelling response to the demand. (Id., § 2031.300(a)-(b).)

Defendant argues

that the parties had an informal arrangement for all cases between them wherein Plaintiffs' counsel gave Defendant an open-ended extension to respond to Plaintiffs' discovery. Defendant contends the arrangement provided it was not required to respond unless specifically requested by Plaintiff's counsel. This motion undermines the parties' agreement. However, Defendant states it served verified responses on June 3, 2026, one day after Plaintiffs filed this motion.

Defendant

did not submit copies of its belated responses purportedly served on Plaintiffs. Nor has Defendant submitted a copy of the parties' written agreement granting Defendant an open-ended extension to respond to all discovery. Plaintiffs' counsel states that Plaintiffs previously granted a limited extension of time to respond, but because the responses were substantially overdue, Plaintiffs revoked any prior extension by letter dated May 20, 2026. (Rucker decl., Ex. 4.)

Accordingly,

Plaintiffs are entitled to fees and costs as sanctions for Defendant's failure to show substantial justification for failing to timely respond.

III. CONCLUSION

Based

on the foregoing, Plaintiffs' motion is GRANTED. Defendant is ordered to serve verified responses to the first set of requests for production without objection within 10 days. Defendant has not shown substantial justification for its failure to timely serve discovery responses. The Court imposes monetary sanctions of \$1,155 (\$385 x 3 hours) against Defendant, FCA US, LLC, payable to Plaintiffs within 10 days.